

		<i>Defendant to give notice.</i>
108	Doe vs. 1, 25-01495743	Defendant Nancy Williams (“Defendant”) demurs to the First Amended Complaint on the grounds that (1) the causes of action are time barred pursuant to section 340.1 and Plaintiff fails to allege sufficient facts to invoke the delayed discovery rule and (2) the causes of action are uncertain and vague. Plaintiff John Wa Doe (“Plaintiff”) opposes the motion. I. THE COMPLAINT IS NOT BARRED BY THE STATUTE OF LIMITATIONS Defendant’s first argument is that Plaintiff’s complaint is barred by the statute of limitations set forth in Code of Civil Procedure section 340.1. Section 340.1 governs childhood sexual assault cases. When the childhood sexual assault at issue “occurred on and after January 1, 2024,” then there “is no time limit for the commencement of” the actions listed in section 340.1 for recovery of damages suffered as a result of childhood sexual assault.” (Code Civ. Proc., § 340.1, subds. (a) and (p).) Code of Civil Procedure section 340.11 states: “(a)(1) Notwithstanding Section 340.1, in an action for recovery of damages suffered as a result of childhood sexual assault that occurred before January 1, 2024, the time for commencement of the action shall be within 22 years of the date the plaintiff attains the age of majority or within five years of the date the plaintiff discovers or reasonably should have discovered that psychological injury or illness occurring after the age of majority was caused by the sexual assault, whichever period expires later, for any of the following actions: “(A) An action against any person for committing an act of childhood sexual assault. “(B) An action for liability against any person or entity who owed a duty of care to the plaintiff, if a wrongful or negligent act by that person or entity was a legal cause of the childhood sexual assault that resulted in the injury to the plaintiff.

		“(C) An action for liability against any person or entity if an intentional act by that person or entity was a legal cause of the childhood sexual assault that resulted in the injury to the plaintiff. “(2) Notwithstanding paragraph (1) or Section 340.1, in an action for recovery of damages suffered as a result of childhood sexual assault that occurred before January 1, 2024, involving an act that would have been proscribed by Sections 311.1 or 311.2 of the Penal Code, the time for commencement of the action shall be within 22 years of the date the plaintiff attains the age of majority or within 10 years of the date the plaintiff discovers or reasonably should have discovered, after the age of majority, the existence of obscene matter, for any of the actions identified in subparagraphs (A) to (C), inclusive, of paragraph (1).” (Code Civ. Proc., § 340.11, subd. (a).) Here, Plaintiff argues that the statute of limitations does not bar Plaintiff’s claims because Plaintiff commenced this action “within five years of the date the plaintiff discovers or reasonably should have discovered that psychological injury or illness occurring after the age of majority was caused by the sexual assault.” Specifically, Plaintiffs alleges: “Within the past five years, PLAINTIFF has discovered that the psychological injury after reaching the age of majority was caused by the decades-long sexual assaults and abuse perpetrated upon him as a child by Defendant NANCY WILLIAMS. Specifically, in July 2023, after attending a presentation focused on childhood sexual abuse and grooming behavior at Capstone Recovery Center in Searcy, Arkansas, PLAINTIFF, for the very first time, realized and discovered that he was a victim of sexual abuse. Immediately following this presentation, PLAINTIFF for the very first time, disclosed the sexual abuse to his therapist and came to the realization that the psychological injuries he had suffered, and continues to suffer, were caused by the repeated instances of sexual abuse and sexual grooming employed by his own biological mother, Defendant NANCY WILLIAMS, throughout his childhood. As a result of Defendant NANCY WILLIAMS’s acts, PLAINTIFF had developed feelings of deep-rooted shame and self-blame in the years following the abuse and well into his adult life. He self-medicated
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with alcohol and drugs, became an angry and alienated person, and even attempted to take his own life. PLAINTIFF further alleges that as a result of Defendant NANCY WILLIAMS's actions and abuse, PLAINTIFF came to rely on psychological defenses such as denial and dissociation, which reasonably and justifiably prevented PLAINTIFF from being able to discover that the psychological injuries occurring in his adult life were connected to the sexual abuse he suffered as a child, and from being able to discover the wrongfulness of Defendant NANCY WILLIAMS's conduct, until on or after approximately July 2023 when PLAINTIFF attended the presentation at the Capstone Recovery Center, where for the first time he was educated on the topics of childhood sexual abuse and grooming behavior and later made those revelations during therapy with his therapist. As a result, PLAINTIFF's claims are timely." (FAC, ¶ 11.)

Defendant argues that Plaintiff has not sufficiently established that his delayed discovery permits their case to proceed. Defendant relies on *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808–809, which states:

"Simply put, in order to employ the discovery rule to delay accrual of a cause of action, a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that injury. If such an investigation would have disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light. In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period." (*Ibid.*)

Importantly, however section 340.11 does not require a showing of diligence or reasonableness in delayed discovery. Section 340.11 expressly states that "the time for commencement of the action shall be within 22 years of the date the plaintiff attains the age of majority *or within five years of the date the plaintiff discovers or reasonably should have discovered* that psychological injury or illness

occurring after the age of majority was caused by the sexual assault.” (*Ibid.*, emphasis added.) There is no express requirement that Plaintiff be diligent or reasonable in discovering the that his injury was caused by the sexual assault. Rather, the statute expressly states that the statute of limitations begins upon discovery.

As discussed in *Quarry v. Doe I* (2012) 53 Cal.4th 945, the California Supreme Court does “not believe the Legislature intended that common law delayed discovery principles should apply to cases governed by section 340.1.” (*Quarry v. Doe I* (2012) 53 Cal.4th 945, 984.)

Given the discission in *Quarry v. Doe I* (2012) 53 Cal.4th 945 along with the express language in section 340.11 that states that the statute of limitations beings to accrue upon discovery (with no mandatory qualifications as to the reasonableness or diligence surrounding the discovery), the Court finds that the causes of action at issue are not barred by the statute of limitations as discussed in the demurrer based on the allegations in the FAC.

The Court agrees that sections 340.1 and 340.11 only apply to “any act committed against the plaintiff that occurred when the plaintiff was under the age of 18 years.” (Code Civ. Proc., § 340.11, subd. (f).) Still, Plaintiff sufficiently alleges sexual abuse that occurred before he reached the age of majority and therefore the causes of action alleged survive the demurrer.

As such, the Demurrer is OVERRULED as to the statute of limitations argument.

II. THE ALLEGATIONS ARE NOT UNCERTAIN AND VAGUE

Next, Defendant generally argues that the allegations in the FAC are uncertain and vague. Defendant does not state which elements of the causes of action alleged are missing or require additional information.

Defendant argues:

“While the FAC adds some additional facts, it remains fatally vague and ambiguous as to the specific conduct alleged. The FAC now provides locations for the alleged

abuse and ballpark figures quantifying the occasions of abuse. (FAC ¶¶ 15, 16.) However, the FAC remains bereft of concrete, factual details and so fails to apprise Defendant of the basic who, what, and when of the alleged misconduct, including the nature of the purported acts of abuse, their dates, or the frequency with which they allegedly occurred. The FAC merely states that “these acts are alleged to have occurred within the Laguna Niguel family home on a regular and consistent basis on over fifty different occasions” and “rapes occurred by both force and duress regularly at the Laguna Niguel, California home, and on one occasion at the San Ynez, California ranch property.” (Id.) These allegations, while supplying the “where”, fail to cure the vagueness of the specific conduct.”

“A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.” ’ [Citation.]” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 292.)

“[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.’ [Citation.]” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 292.) “However, ‘ “[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced.”’ (*Ibid.*)

“No error or defect in a pleading is to be regarded unless it affects substantial rights.” (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240.) “The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (*Ibid.*)

Here, the FAC gives Defendant sufficient notice of the issues to enable her to prepare a defense. For example, Plaintiff alleges:

		“NANCY WILLIAMS began sexually grooming and molesting” Plaintiff at the age of six. (FAC, ¶ 15.) “Over the next seven years, from approximately 1987 to 1994, NANCY WILLIAMS would regularly and routinely sexually abuse PLAINTIFF under the guise of “teaching” him lessons in sex and sexual gratification, exhibiting reprehensible behavior, including but not limited to: forcing PLAINTIFF to sleep in NANCY WILLIAMS’s bed with her; groping PLAINTIFF’s body; asking to touch PLAINTIFF’s bare penis; orally copulating PLAINTIFF’s penis; teaching PLAINTIFF about and encouraging acts of masturbation, including how to ensure DEFENDANT achieved climax; and pressuring and encouraging PLAINTIFF to put his mouth on NANCY WILLIAMS’s breasts to “nurse” despite PLAINTIFF being well beyond the appropriate age for breastfeeding.” (FAC, ¶ 15.) The Demurrer is OVERRULED as to Defendants argument that the allegations are uncertain and vague. In sum, the Demurrer is OVERRULED in its entirety. Defendant shall file an answer within 20 days after receiving notice of this ruling. The Case Management Conference is continued to November 19, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
109	Aguirre vs. Davita, Inc, 24-01394742	<i>Off-calendar.</i>
110	Tran vs. Dang, 24-01417792	<i>Off-calendar.</i>
111	NAJARRO-MYTINGER vs. VOLKSWAGEN GROUP OF AMERICA, INC., 24-01434972	Defendant McKenna Volkswagen Huntington Beach moves for judgment on the pleadings as to the third cause of action for negligent repair in Plaintiff’s complaint. In opposition, Plaintiff contends that the motion is moot because, according to Plaintiff, “McKenna Volkswagen Huntington Beach” is either the fictitious business name of McKenna Motors Huntington Beach, Inc. (an entity that